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SECRETARY'S CERTIFICATE

The undersigned hereby certifies that he/she is the duly elected, qualified and acting Secretary of the Yowell Ranch Homeowners' Association, Inc., a Texas nonprofit corporation (the "Association"), and that attached hereto as Exhibit "A" and made a part hereof is a true and correct copy of the Xeriscaping Policy of the Association.

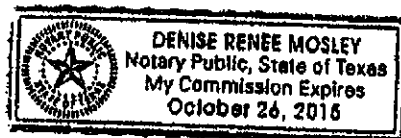
IN WITNESS WHEREOF, the undersigned has executed this certificate on the 17th day of SEPTEMBER, 2013.

Print Name: DALE SANDA
Title: Secretary

STATE OF TEXAS §
COUNTY OF TARRANT §

This instrument was acknowledged before me on this 17th day of September, 2013, by Dale Sanda, Secretary of the Yowell Ranch Homeowners' Association, Inc., a Texas nonprofit corporation, on behalf of said non-profit corporation.

[seal]



Denise Renee Mosley
Notary Public Signature

EXHIBIT "A"**YOWELL RANCH HOMEOWNERS' ASSOCIATION, INC.**
XERISCAPING POLICY

Terms used but not defined in this policy will have the meaning subscribed to such terms in that certain Declaration of Covenants, Conditions and Restrictions for Yowell Ranch, recorded under Document No. 2010-00002251, Official Public Records of Bell County, Texas, and as the same may be amended and supplemented from time to time (the "Declaration").

Note: Texas statutes presently render null and void any restriction in the Declaration which completely prohibits the installation of drought-resistant landscaping or water-conserving turf on a residential lot, which is a landscaping procedure known as xeriscaping ("Xeriscaping"). The Board and/or the architectural approval authority under the Declaration has adopted this policy in lieu of any express prohibition against Xeriscaping or any provision regulating such matters which conflict with Texas law, as set forth in the Declaration.

A. ARCHITECTURAL REVIEW APPROVAL REQUIRED.

Approval by the Architectural Control Authority under the Declaration is required prior to installing Xeriscaping. No Owners shall install gravel, rocks or other ground cover rock that in the aggregate encompass over 10% of such Owner's front, side or back yards. Furthermore, no Owners shall install cacti that in the aggregate encompass over 30% of such Owner's front, side or back yards. The Architectural Control Authority is not responsible for: (i) errors in or omissions in the application submitted to the Architectural Control Authority for approval; (ii) supervising installation or construction to confirm compliance with an approved application or (iii) the compliance of an approved application with governmental codes and ordinances, state and federal laws.

B. XERISCAPING PROCEDURES AND REQUIREMENTS

1. **Approval Application.** Approval by the Architectural Control Authority is required prior to installing Xeriscaping. To obtain Architectural Control Authority approval of Xeriscaping, the Owner shall provide the Architectural Control Authority with the following information: (i) the proposed site location of the Xeriscaping on the Owner's Lot; (ii) a description of the Xeriscaping, including the types of plants, border materials, hardscape materials and photograph or other accurate depiction and (iii) the percentage of yard to be covered with gravel, rocks and cacti (the "Xeriscaping Application"). A Xeriscaping Application may only be submitted by an Owner unless the Owner's tenant provides written confirmation at the time of submission that the Owner consents to the Xeriscaping Application.

2. Approval Process. The decision of the Architectural Control Authority will be made within a reasonable time, or within the time period otherwise required by the principal deed restrictions which govern the review and approval of improvements. A Xeriscaping Application submitted to install Xeriscaping on property owned by the Association or property owned in common by members of the Association will not be approved. Any proposal to install Xeriscaping on property owned by the Association or property owned in common by members of the Association must be approved in advance and in writing by the Board, and the Board need not adhere to this policy when considering any such request.

Each Owner is advised that if the Xeriscaping Application is approved by the Architectural Control Authority, installation of the Xeriscaping must: (i) strictly comply with the Xeriscaping Application; (ii) commence within thirty (30) days of approval; and (iii) be diligently prosecuted to completion. If the Owner fails to cause the Xeriscaping to be installed in accordance with the approved Xeriscaping Application, the Architectural Control Authority may require the Owner to: (i) modify the Xeriscaping Application to accurately reflect the Xeriscaping installed on the property; or (ii) remove the Xeriscaping and reinstall the Xeriscaping in accordance with the approved Xeriscaping Application. Failure to install Xeriscaping in accordance with the approved Xeriscaping Application or an Owner's failure to comply with the post-approval requirements constitutes a violation of this policy and may subject the Owner to fines and penalties. Any requirement imposed by the Architectural Control Authority to resubmit a Xeriscaping Application or remove and relocate Xeriscaping in accordance with the approved Xeriscaping Application shall be at the Owner's sole cost and expense.

3. Approval Conditions. Unless otherwise approved in advance and in writing by the Architectural Control Authority, each Xeriscaping Application and all Xeriscaping to be installed in accordance therewith must comply with the following:

(i) The Xeriscaping must be aesthetically compatible with other landscaping in the community as reasonably determined by the Architectural Control Authority. For purposes of this Xeriscaping policy, "aesthetically compatible" shall mean overall and long-term aesthetic compatibility within the community. For example, an Owner's Lot plan may be denied if the Architectural Control Authority determines that the use of specific turf or plant materials would result in damage to or cause deterioration of the turf or landscaping of an adjacent property owner resulting in a reduction of aesthetic appeal of the adjacent property owner's Lot.

(ii) No Owners shall install gravel, rocks or other ground cover rock that in the aggregate encompass over 10% of such Owner's front, side or back yards. Furthermore, no Owners shall install cacti that in the aggregate encompass over 30% of such Owner's front, side or back yards.

(iii) The Xeriscaping must not attract diseases and insects that are harmful to the existing landscaping on neighboring Lots, as reasonably determined by the Architectural Control Authority.

**** Electronically Filed Document ****

**Bell County, Tx
Shelley Coston
County Clerk**

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Parties:

Direct- YOWELL RANCH HOMEOWNERS ASSOCIATION INC

Indirect- EX PARTE

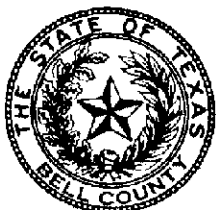
Receipt Number: 184006

Processed By: Grace Gomez

(Parties listed above are for Clerks reference only)

***** THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property Records in Bell County, Texas

**Shelley Coston
Bell County Clerk**

A handwritten signature in cursive script that reads "Shelley Coston".